

25STCV31978B 25STCV31978B

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C08%2F10%2F2026

Source SHA-256: 5a436abe63728059455c0ca7608f4d012d0246b9c74d1d49d297895897587a67

Case Number: 25STCV31978B Hearing Date: August 10, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 10, 2026

CASE NUMBER

25STCV31978B

MOTION

Motion to Require Undertaking

MOVING PARTIES

Defendants St. George, Harlan K. Bixby, and BXB Bridge LLC

OPPOSING PARTY

Plaintiff Judith B. Welch

MOTION

Defendants St.

George, Harlan K. Bixby, and BXB Bridge LLC ("Defendants") move to require Plaintiff Judith B. Welch ("Plaintiff") to post an undertaking. Plaintiff opposes the motion.

DISCUSSION

The parties'

agreement states the Court is to consider the probable validity of Plaintiff's claim in connection with the request for undertaking in the manner the Court would consider an application for writ of attachment. For purposes of an application for writ of attachment, a claim has probable validity when "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc., § 481.190.)

Thus, in ruling on

an opposed application for writ of attachment, "the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation." (Loeb & Loeb v. Beverly Glen Music, Inc. (1985) 166 Cal.App.3d 1110, 1120,)

In support of its

motion for an undertaking, Defendants simply rehash the arguments Defendants make in their demurrer. As set forth in this Court's ruling on the demurrer, Defendants contentions uniformly lack merit. Accordingly, Defendants have not established their contentions have more merit than the stance Plaintiff has taken at this juncture of the action such that the Court should require Plaintiff to post an undertaking.

Accordingly, the motion is denied.

Defendants are

ordered to provide notice of the Court's ruling and to file proof of service of same.